

09.08.2022

Sanction for GDPR Violation

The National Supervisory Authority completed in July 2022 an investigation into the operator Denmar Nacrut SRL and found violations of the provisions of art. 12, art. 13, as well as art. 5 para. (1) letters a), b) and c), in relation to art. 5 para. (2) and art. 6 of the General Data Protection Regulation. As such, the operator was sanctioned contraventional, as follows:

- a fine of 4,945.10 lei (equivalent to 1,000 EURO) for violating the provisions of art. 12-13 of the General Data Protection Regulation;
- a fine of 7,417.65 lei (equivalent to 1,500 EURO) for violating the provisions of art. 5 para. (1) letters a), b) and c), in relation to art. 5 para. (2) and art. 6 of the General Data Protection Regulation.

At the same time, under the provisions of art. 58 para. (2) letter d) of the General Data Protection Regulation, the following corrective measures were imposed on the operator:

- ensuring the information of the data subjects by communicating in a concise, transparent, intelligible, and easily accessible form all the information provided by art. 13 of the General Data Protection Regulation and under the transparency conditions mentioned in art. 12 of the same regulation;
- removal of the use of the video surveillance camera installed in the cosmetic room for which there is no express legal basis for processing the personal data of its clients and employees according to art. 6 of the General Data Protection Regulation;
- ensuring compliance with the General Data Protection Regulation for the operations of processing personal data, by implementing appropriate technical and organizational measures and establishing appropriate rules related to the management of images captured by surveillance cameras;
- prohibiting remote access via the Internet to images and recordings, as well as accessing images and recordings only in the event of incidents related to the purpose of installing these surveillance cameras.

The investigation was initiated following a complaint from an individual who reported that data subjects, clients of SC Denmar Nacrut SRL, were being video monitored during the provision of cosmetic services.

During the investigation, it was found that Denmar Nacrut SRL has a video surveillance system installed both inside and outside the premises where the operator conducts its activity, which monitors both employees and clients. It was also noted that the operator did not provide evidence of having made a clear, complete, and correct information to its employees and the data subjects whose personal data (namely images) are processed through the video surveillance cameras, by communicating all the information provided by art. 13 of the General Data Protection Regulation and under the transparency conditions of art. 12 of the same regulation.

Additionally, it was found that Denmar Nacrut SRL did not provide evidence of any prior incidents that would justify its legitimate interest prevailing over the interests or fundamental rights and freedoms of the data subjects. Thus, it was established that the operator excessively processed the data (images) of its clients and employees through the video camera installed in the premises where cosmetic treatments were performed. The data thus processed were not adequate, relevant, and limited to what is necessary in relation to the purposes for which they were processed ("data minimization"). The declared purpose of the operator could have been achieved through less intrusive means for the privacy of its clients and employees.

As such, it was found that the provisions of art. 5 para. (1) letters a), b) and c) of the General Data Protection Regulation were violated in relation to the legality conditions for processing established by art. 6 of the same regulation.

Furthermore, the operator could not demonstrate compliance with the processing principles under art. 5 para. (2) of the General Data Protection Regulation.

Legal and Communication Directorate
A.N.S.P.D.C.P.